CONSEIL DE L'EUROPE

COUNCIL OF EUROPE

COUR EUROPÉENNE DES DROITS DE L'HOMME
EUROPEAN COURT OF HUMAN RIGHTS

SECOND SECTION

DECISION

Application nos. 20885/02 and 27764/02
by Nusret SULKALAR and Hasan KARAKAYA
against Turkey

The European Court of Human Rights (Second Section), sitting on 21 November 2006 as a Chamber composed of:

Mr J.-P. COSTA, *President,*
Mr A.B. BAKA,
Mr R. TÜRMEN,
Mr M. UGREKHELIDZE,
Mrs E. FURA-SANDSTRÖM,
Ms D. JOČIENĖ,
Mr D. POPOVIĆ, *judges,*

and Mrs S. DOLLÉ, *Section Registrar*,

Having regard to the above applications lodged on 12 April 2002,

Having regard to the decision to apply Article 29 § 3 of the Convention and examine the admissibility and merits of the cases together,

Having deliberated, decides as follows:

THE FACTS

The applicants, Mr Nusret Sulkalar and Mr Hasan Karakaya, are Turkish nationals who were born in 1953 and 1960 respectively. They are represented before the Court by Mr Fevzi Gümüş, Mr Metin Ayhan and Mr Akay Sayılır, lawyers practising in Ankara.

The facts of the case, as submitted by the applicants, may be summarised as follows.

The applicants are members of Eğitim-Sen, a trade union formed by public employees. Eğitim-Sen is a member of the Confederation of Public Employees' Trade Unions (*Kamu Emekçileri Sendikaları Konfederasyonu*-hereinafter referred to as "KESK"). In 2001 the Turkish Parliament prepared a draft bill to amend the Act on Trade Unions. While this draft was being discussed before the Parliament, the "KESK" organised a meeting in a park in Ankara to protest against the draft. The aim was to draw public attention to it and to achieve the withdrawal of the bill, which in their view did not meet international standards.

On 25 June 2001 a group of people, including the applicants, gathered in Kızılay. While a speech was being made, police officers intervened and tried to disperse the group. The officers verbally warned the group that the meeting was illegal, as no permission had been obtained from the relevant authorities pursuant to Law No. 2911 on meetings and demonstrations. The police officers then used truncheons, sticks and gas bombs to disperse the crowd. The applicants were wounded during the incident.

In the medical report of the Ankara Forensic Medicine Institute, dated 25 June 2001, it was stated that both applicants were unfit to work for two days. According to the report, Mr Sulkalar had ecchymosis and swelling on the right side of the zygomatic area, ecchymosis on the right side of the occipital area, swelling and ecchymosis on the right side of the chin, abrasions and ecchymosis on the front part of the right tibia, and swelling on the rear part of the tibia.

Mr Karakaya had ecchymosis in the dorsal area of the left arm, abrasions on the left elbow, ecchymosis on the right arm and abrasions and ecchymosis on the front part of the left tibia.

On an unspecified date, the applicants filed a complaint with the Ankara public prosecutor against the Governor of Ankara, the director of the Ankara police headquarters and the police officers who were involved in the incident.

Pursuant to Law No. 4483 on prosecution of civil servants, in order to be able to initiate criminal proceedings, the public prosecutor transferred the file to the Ministry of Interior to obtain authorisation.

On 9 October 2001 the Ministry of Interior sent a letter to the public prosecutor, and relying on Article 4 of Law No. 4483 requested that no action be taken against the accused persons. The Ministry considered that the force used by the police was justified and legal in the circumstances of the case. In the letter, it was stated that the officers were under an obligation to disperse the demonstrators, who had organised an illegal meeting. As a result, on 29 January 2002 the Ankara public prosecutor decided not to take any action concerning the complaint lodged by the applicants.

On an unspecified date, criminal proceedings were initiated against the applicants for violating Law No. 2911. On 14 November 2001 the Ankara Criminal Court acquitted the applicants of the charges against them. In its

judgment, the court referred to Article 11 of the Convention and stated that everyone had the right to hold unarmed and peaceful meetings and demonstration marches without prior permission. According to the court, as the demonstrators' intention was to draw public attention to a draft bill, their aim was peaceful and did not upset public order or national security.

COMPLAINTS

The applicants complained in the first place about the treatment they were subjected to on 25 June 2001. In this respect, they invoked Article 3 of the Convention.

Furthermore, they alleged that their right to liberty and security was breached as no criminal proceedings were initiated against the police officers, the director of the police headquarters and the Governor of Ankara.

Under Articles 6 and 13 of the Convention, the applicants complained that they had no effective remedy in respect of their ill-treatment complaints.

The applicants alleged under Article 7 of the Convention that they were sanctioned because of an act which did not constitute a criminal offence.

Under Articles 10 and 11 of the Convention, the applicants alleged that the police interference in the meeting constituted a breach of their right to freedom of expression and freedom of assembly.

Finally, without giving any specific reasons, the applicants invoked Articles 14 and 17 of the Convention.

THE LAW

The Court finds that, because of the similarity of the factual and legal issues involved, it is appropriate to join the present applications.

On 19 October 2005 the Court decided to communicate the applications to the respondent Government. On 28 March 2006 the Government submitted their observations on admissibility and merits. On 11 April 2006 the applicants' representative was invited to submit any further observations in reply, together with any claims for just satisfaction by 24 May 2006.

On 26 July 2006 the Registry sent a registered letter to the applicants' representative, informing him that the period allowed for submission of the applicants' observations on the admissibility and merits of the applications had expired on 24 May 2006 and that no extension of time had been requested. This letter was delivered to the applicants' representative on 8 August 2006. The Court notes that in the said letter the attention of the

applicants' representative was drawn to Article 37 § 1 (a) of the Convention. The Registry has received no response to this day.

In these circumstances, the Court considers that the applicants may be regarded as no longer wishing to pursue their application, within the meaning of Article 37 § 1 (a) of the Convention. Furthermore, in accordance with Article 37 § 1 *in fine*, the Court finds no special circumstances regarding respect for human rights as defined in the Convention and its Protocols which require the continued examination of the case.

Accordingly, Article 29 § 3 of the Convention should no longer apply to the cases and they should be struck out of the list.

For these reasons, the Court unanimously

Decides to join the applications;

Decides to strike the applications out of its list of cases.

S. DOLLÉ
Registrar

J.-P. COSTA
President